waiver is applicable to the fundamental rights in USA. In other words, an American citizen can waive his fundamental rights. In short, there is the doctrine of non-waiver in India.

2. Position In India

With respect to the application of the doctrine of waiver to India, the Supreme Court made the following observations[8]:

1. Fundamental Rights cannot be waived by a citizen. They are mandatory on the state and necessary to attain the objectives enshrined in the Preamble. Hence, no citizen can relieve the state of this obligation which is imposed on it by the constitution.

2. The doctrine of waiver enunciated by some American Judges in construing the American Constitution cannot be introduced in our constitution.

3. The fundamental rights have not been put in the Constitution merely for individual benefit, though ultimately, they come into operation in considering individual rights. They have been put there, as a matter of public policy and the doctrine of waiver can have no application to provisions of law, which have been enacted as a matter of constitutional policy.

4. Reference to some of the articles, inter alia, articles 15(1), 20, 21, makes the proposition quite plain. A citizen cannot get discrimination by telling the State "You can discriminate", or get convicted by waiving the protection given under articles 20 and 21.

5. Whatever be the position in America, no distinction can be drawn here, as has been attempted in the United States of America, between the fundamental rights which may be said to have been enacted for the benefit of the individual and those enacted in public interest or on grounds of public policy.

6. Ours is a nascent democracy and situated as we are, socially, economically, educationally, and politically, it is the sacred duty of the Supreme Court to safeguard the fundamental rights.

3. Important Cases

The important cases relating to the doctrine of waiver and their judgements are given in Table 94.2.

Table 94.2 Important Cases Relating to the Doctrine of Waiver

Sl. No.	Case (Year)	Supreme Court Judgement
1.	Behram Khurshid Pesikaka vs. State of Bombay (1954)	It held that in a criminal prosecution, it is not open to an accused person to waive his fundamental rights and get convicted.
2.	Basheshar Nath vs. Commissioner of Income Tax (1958)	It rejected the contention of the respondent that the petitioner by voluntarily entering into an agreement to pay the tax had waived his fundamental right guaranteed under Article 14. It upheld the